

26STCV05047 26STCV05047

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 26STCV05047 Hearing Date: September 1, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 1, 2026

Case Name: Merriman, et al. v. ECS Builders Group, Inc., et al.

Case No.: 26STCV05047

Matter: Default Judgment Application

Ruling: The Default Judgment Application is denied without prejudice.

Plaintiffs Michael Merriman and Christina Felice seek \$633,118.28 in damages for their default judgment.

While Plaintiffs request \$633,118.28 in damages, the Complaint only states that "Plaintiffs have suffered incidental, consequential, general and specific damages in an amount to be proven at the time of trial, but which is in excess of \$400,000.00." This is problematic as "[t]he relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint, in the statement required by Section 425.11, or in the statement provided for by Section 425.115" (Code Civ. Proc. § 580.) "A demand for 'damages according to proof' is insufficient; such a demand does not provide adequate notice to sustain a default judgment." (Yu v. Liberty Surplus Ins. Corp. (2018) 30 Cal.App.5th 1024, 1027.) Further, phrases such as "in an amount not less than" do not give notice for the purposes of Code Civ. Proc. § 580. (Electronic Funds Solutions, LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1173-1174.) Code Civ. Proc. § 580 applies even when a defendant has defaulted after having filed an answer and having participated in discovery. (See Greenup v. Rodman (1986) 42 Cal.3d 822, 828; Elec. Funds Sols., LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1175.)

Thus, Plaintiffs can either accept \$400,000 in damages or else amend the Complaint's allegations as to damages, which would be a material change opening Defendants' defaults. (Cole v. Roebling Const. Co. (1909) 156 Cal. 443; Leo v. Dunlap (1968) 260 Cal.App.2d 24, 27-28.)

Accordingly, the Default Judgment Application is denied without prejudice.